
Journal

1988 PLD 602

Court

SINDH HIGH COURT

Date

1988-08-22

Appeal No.

CONSTITUTIONAL PETITION NO. S-319 OF 1986

Judge

TAMIL-UR-REHMAN

Parties

BIBI ANWAR KHATOON (PETITIONER) VERSUS GULAB SHAH AND 2 OTHERS
(RESPONDENTS)

Lawyers

MUMTAZ ALI SIDDIQI FOR PETITIONER. *ALI MUHAMMAD ABRO FOR RESPONDENT NO.L.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 3 WEST PAKISTAN FAMILY
COURTS RULES, 1965 - R.6 DISSOLUTION OF MUSLIM MARRIAGES ACT (VIII OF 1939) - S.
2(II) DISSOLUTION OF MUSLIM MARRIAGES ACT (VIII OF 1939) - S.2(VII) DISSOLUTION OF
MUSLIM MARRIAGES ACT (VIII OF 1939) - S. 2(VIII)(D) DISSOLUTION OF MUSLIM
MARRIAGES ACT (VIII OF 1939) - S. 2(V) MUHAMMADAN LAW WORDS AND PHRASES
CONSTITUTION OF PAKISTAN (1973) - ARTICLE 199 DISSOLUTION OF MUSLIM
MARRIAGES ACT (VIII OF 1939) - S. 2(IX)

Judgment

JUDGMENT- This is a Constitutional Petition filed by the petitioner under Article 199 of the Constitution of Pakistan, 1973.

The brief facts leading to the above petition are that on 28-6-1984 the petitioner filed a suit (being Family Suit No.6 of 1984) for dissolution of marriage, against respondent No.I, in the Court of Family Judge, Ratodero. In the plaint she stated that about 6 years back she was married to respondent No.I by her father when she was minor. The dower was settled at Rs.1,000 which remained unpaid. After the marriage she went and lived with respondent No.I who behaved properly with her but after about 6 months the respondent changed his attitude and started maltreating her without any reasonable cause. After her marriage, she came to know that the respondent was living on begging. He also snatched away the ear-rings of gold weighing half a tola given to her by her parents at the time of the marriage. That the respondent was very old aged about 85 years and sexually weak. About 6 months after the marriage, he completely lost his sexual power and turned to be impotent, and ultimately after 3 years of the marriage he drew her out of his house and she came and lived with her parents at Ratodero, where she lived till filing of the suit. She also alleged that respondent No.I failed to provide her maintenance for the last 3 years and so also failed to visit her during that period. Lastly, she alleged that the hatred between the parties reached to such an extent that they could not live as husband and wife within the limits prescribed by God and as such she prayed for dissolution of her marriage with respondent No.I on Khula¹.

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2. In the Family Judge's Court several attempts were made to serve respondent No.I but in vain. Lastly, the summons sent by registered post A.D. was received back with the endorsement of the postman that the respondent had refused to receive the same. The learned Family Judge, consequently, on 12-1-1985 held the service good and ordered the suit to proceed ex parte. The petitioner appeared in person and her evidence was recorded. She also produced a witness, Syed Bhooral Shah. Learned Family Judge finding contradiction in her evidence and that of her witness on the point of residence came to the conclusion that according to the petitioner she was living with her parents at Ratodero whereas according to her witness her parents resided at Garhiyasin and the petitioner was residing with him at Ratodero. The learned Judge, on merits also did not feel inclined to agree with the allegation of the petitioner and dismissed the suit by his judgment, dated 17th January, 1985.

The petitioner being aggrieved by the said judgment filed an appeal in the Court of District Judge, Larkana, being Family Appeal No. 15 of 1985. Respondent No.I, this time, was also duly served with the notice of the appeal and was represented through, his counsel. The learned District Judge, in his judgment, dated 4th February, 1986, agreed with the finding of the learned Family Judge that the Family Court, Ratodero had no jurisdiction as she was not living with her parents within his jurisdiction. On merits of the case too, he agreed with the learned Family Judge that the petitioner failed to prove her case for Khula'. The petitioner has now challenged both the orders of the Courts below in the above Constitutional Petition under Article 199 of the Constitution of Pakistan, 1973.

3. Mr. Mumtaz Ali Siddiqui, learned counsel for the petitioner submits that both the learned Courts below have erred on wrong assumption that the suit was not maintainable for want of territorial jurisdiction. He further submits that they have failed to appreciate that the suit originally proceeded ex parte and the evidence on record brought by the petitioner went unchallenged.

Even at the appellate stage the respondent did not file any counter-affidavit to rebut the several allegations levelled against him in the plaint as well as memo, of appeal.

First of all let me examine the question of territorial jurisdiction of the Ratodero Family Court which is of paramount importance in the case. The petitioner has stated in the plaint that "lastly about three years back (the defendant) drove out the plaintiff from his house who came and lived with her parents at Ratodero and is still living with them." In her statement before the learned Family Judge, she deposed that "About 7 years back I got married with the defendant abovenamed.....I went and lived with the defendant for about 3

years.....and after 3 years of my marriage he drove me out of his house and since'then I am living in Ratodero". .

P.W.2, Syed Bhooral Shah, however, deposed:

"The father of the plaintiff is actually residing in Garhiyasin,

District Shikarpur. The plaintiff used to live in my house.

After the dispute the plaintiff is residing with me."

4. The learned Family Judge from the above evidence came to the conclusion that the petitioner was not living in Ratodero- and, therefore, he had no jurisdiction as it appeared from the evidence that the petitioner and her parents were not residing at Ratodero but at Garhiyasin. The counsel submits that the discrepancy, however, is whether she is residin.g with her parents or with her relation. Once it is established by the evidence that she has been residing at Ratodero,the question whether her parents reside at Ratodero or Ghariyasin'is of little significance.

It is noticeable that the respondent did not file any written statement in the- suit or counter-affidavit in th-e appeal or even in the above petition, in rebuttal to the fact of petitioner's residing at

Ratodero for a period of three years. Reliance is placed' by the learned counsel on the case reported as Safdar Ali Zia v. Umme Rabbab 1984 CLC 2201 wherein a learned Single Judge of the Lahore High Court in a Constitutional Petition observed that "The case was heard by the learned Judge Family Court, Sahiwal while, according to the petitioner, the wife resides in Okara. The onus of this issue was placed on the petitioner but he was unable to discharge it and the contention of the wife that she was working at Sahiwal in a school was accepted. Since at the relevant time the wife was residing at Sahiwal, the Court at Sahiwal did have the territorial jurisdiction. Learned counsel also placed reliance on a D.B. judgment of this Court reported as Ishtiaq Ahmed v. Second Additional District Judge, Sukkur and two others PLD 1977 Kar. 733.

The relevant facts of the cited case were that the petitioner married Mst. Tahira Khatoon, respondent No.3 at Mandi Bahauddin. It was also stated in the petition that the parents of respondent No.3 took her away from the house of the petitioner, some 15 days after the marriage.

Subsequently on

24-1-1972, respondent No.3 filed a Family Suit in the Family Court at Sukkur for recovery of her prompt dower and also for maintenance.

The petitioner resisted the suit on many grounds including the ground that Court at Sukkur had no jurisdiction in the matter. He also filed an application under rule 5 of the Rules framed under the Family Courts Act, for the return of the plaint to respondent No.3 (perhaps, for presentation to the proper Court). This application was rejected by the learned Family Court, Sukkur on the ground that there was evidence to show that the said respondent was ordinarily residing at Sukkur. The petitioner went up in appeal to the District Judge but the learned District Judge, Sukkur upheld the decision given by the learned Family Court and dismissed the appeal. Thereafter, the petitioner filed a Constitutional Petition in the High Court. The learned Judges of the Division Bench, in respectful agreement with the views taken in the two Lahore cases, namely, *Fazlan Bibi v. Muhammad Azim* PLD 1952 Lah. 227 and *Tahira Begum v. Matiullah* PLD 1971 Lah. 886 and the Karachi case reported as *Mahbub Ahmed v. First Additional District Judge* PLD 1976 Kar. 978 held that the respondent "can be considered to be ordinarily resident of that place for the purpose of Rule 6 of the Family Courts Rules, 1965". The facts being somewhat similar to the case before me, I respectfully follow the judgment of the learned D.B. of this Court which is also binding on me. It may, however, be stated by me that separate Courts for determination of the family disputes have been established under Family Courts Act, 1964 to settle the family disputes as early as possible to give speedy justice. The most important feature of the Family Courts Act, 1964 and Rules made thereunder which needs to be mentioned here is that the statute determines the place of suing. Rule 6 provides that "The Court which shall have jurisdiction to try a suit will be that within the local limits of which-(a) the cause of action wholly or in part has arisen, or (b) where the parties reside or last resided together: Provided that in suits for dissolution of marriage or dower, the Court within the local limits of which the wife ordinarily resides shall also have jurisdiction". This has mitigated worries of a wife when she leaves her husband's place and moves to another place, village or city as a consequence of the dispute.

6. In my view, both the Courts below have unlawfully refused to exercise their jurisdiction on a wrong assumption that they did not have which, in fact, they had, by virtue of Rule 6 of the West Pakistan Family Courts Rules, 1965, as the suit being for dissolution of marriage could be filed in the Court of Family Judge Ratodero where the petitioner was ordinarily residing for the last three years prior to filing of the suit which fact stood unrebutted by the respondent.

7. As to the other allegations it seems advantageous to reproduce the averments made in the plaint which read as under: -

"Suit for dissolution of marriage.

The plaintiff submits as under-

(1) That the plaintiff was married to the defendant about 6 years back according to Shariat when she was minor.

(2) That at the time of the marriage, the parents of the plaintiff . gave her pair of gold ear-rings weighing £ tola. The dower

was settled at Rs. 1,000 which remains unpaid.

(3) That after the marriage, the plaintiff went and lived with the defendant who behaved properly with the plaintiff but after 6 months the defendant changed his attitude and started maltreating the plaintiff now and then without any reasonable cause.

(4) That immediately after the marriage, the plaintiff came to know that the defendant was

jobless, depending on begging as a result of which the defendant snatched the gold ear-ringj from the plaintiff and sold away the same in spite of the protest raised by the plaintiff.

(5) That the defendant had weak sexual power but after about 6 months of the marriage the defendant lost completely his sexual energy and is impotent having no possibility of having an issue from the plaintiff who has never been pregnant.

(6) That the plaintiff tolerated the maltreatment, humiliation, non-maintenance and other difficulties yet the defendant treated the plaintiff as a burden on him and lastly about 3 years back drove out the plaintiff from his house who came and lived with her parents at Ratodero and is still living with them.

(7) That the defendant since last three years has failed to maintain the plaintiff and has never visited her.

(8) That the hatred between the parties has reached to such an extent that they cannot live as wife and husband within the limits of God as such if the plaintiff cannot succeed on other grounds, she claims 'Khula' divorce and is willing and prepared to return what she has received from the defendant.

(9) That the cause of action accrued about 3 years back when she was driven out of the house by the defendant and is still accruing.

(10) That the plaintiff resides at Ratodero as such this Hon'ble Court has jurisdiction to try this suit.

(11) That the fixed court-fee of Re.1 is paid.

(12) That the plaintiff prays for judgment and decree as under:- (a) The marriage of the plaintiff with the defendant be dissolved.

(b) Costs of the suit be awarded to the plaintiff.

(c) Any other relief be awarded to the plaintiff to which she is deemed entitled." '

8. The petitioner further deposed before the learned Family Judge that:-

"About 7 years back I got married with the defendant abovenamed. The dower was fixed at Rs. 1,000 which remained unpaid. I went and lived with defendant for about 3 years. I was given gold ear-rings of half tola by my parents which were snatched by the defendant. Just after my marriage I came to know that the defendant was jobless man and depending on begging. On my protest, he beat me and after 3 years of my marriage he drove me out of his house and since then I am living in Ratodero. I also found that the defendant was aged and impotent. Since separation from the defendant he has failed to maintain me or visit me. My prayer is that my marriage be dissolved with the defendant."

Her witness Syed Bhooral Shah deposed:

"I know the parties. They are wife and husband. The plaintiff is residing in Ratodero for the last 3 years....The plaintiff is residing with

plaintiff is my relative. The plaintiff made complaint before me that the defendant used to maltreat

her'and also was impotent. Since last three years the defendant has neither maintained the plaintiff nor visited her."

9. Let me now state the legal position of the several allegations of the petitioner in relation to the petitioner's right to seek dissolution of marriage by judicial separation.

10. It has been alleged by the petitioner that she has been turned out of the house by her husband who has failed to provide maintenance to her for the last three years. The basis of the husband's liability to maintain his wife is not merely marriage but it arises out of the wife's surrender of her person to her husband. In other words, when the wife puts herself under the control of the husband, her maintenance becomes obligatory on him. But there is an exception to this general rule: If the husband, due to his own shortcomings, is unable to keep his wife with him, e.g. he is incapable of having sexual intercourse with her, or does not wish to keep the wife with him for his own reasons, the wife's right of maintenance will not be affected. Furthermore, if the dower is prompt or it is payable within 1 a certain period and that period has expired, and the dower remains still unpaid, and for that reason the wife refuses to live with her husband, her refusal will be considered to be valid, and' her right to maintenance shall not be affected, whether marriage has been consummated or not. Her right to maintenance shall also not be affected if the wife refuses to return to the house of her husband or live with him for some valid reason e.g. his cruelty. Under section 2(ii) of the Pakistan Dissolution of Muslim Marriages Act, 1939 a wife has been given the right of claiming dissolution of marriage, inter alia, on the ground that the husband had refused or neglected to provide maintenance to her for the period of two years. The petitioner's allegation as to non-providing of maintenance by the respondent for 3 years has gone unchallenged.

11. The petitioner, as alleged, was minor when she was given in marriage by her father to respondent No.I. Under the traditional Islamic Law, if a Muslim minor girl has been married during her minority by the guardian, the minor has got the right on attaining puberty (physical majority) to repudiate such marriage. According to the Hanafi school of law, barring Adu Yusuf, there is consensus of opinion that the marriage of minor boys or girls, got contracted during their minority by their guardians, other than their fathers or grandfathers, may on their attainment of majority, be repudiated by them. Refer Qazi Khan: Fatawa, Vol. I, Kitab al-Nikah, p.166:

12. In undivided India till March 17, 1939 the marriage contracted¹ by the father or the grandfather as guardian could not be got annulled by the exercise of the option of puberty. But under the Dissolution of Muslim Marriages Act (VIII of 1939), provisions of Muslim Law relating to suits for dissolution of marriages by women married under Muslim Law were consolidated and clarified. A girl got contracted into marriage by her father or grandfather or other guardian was treated at par and declared entitled under subsection (vii) of section

2 to obtain decree for dissolution of marriage from Court through her exercise of option of puberty. In the result, whatever distinction in connection with the right of "option of puberty" in marriages got contracted by,fathers, grandfathers and other guardians had been recognised in the earlier decisions of the Indo-Pakistan Courts disappeared by virtue of this Act which is being fully implemented since then.

13. Thus, under the law of Pakistan too, a girl contracted in marriage even by her father or grandfather during minority has an option on attaining puberty, either to accept the marriage or repudiate it and to get thereby a decree of dissolution of her marriage through a competent Court of Law.

14. As held in Muhammad Amin v. Surraya Begum PLD 1970 Lah. 475 there are, however, three

pre-conditions for exercising option of puberty, namely, the performance of marriage during minority with the consent of the guardian, its non-consummation, and its repudiation between the age of 16/18 years.

15. The option of puberty of a virgin girl shall, therefore, lapse if she, on attaining her puberty, permits her husband to cohabit with her or if she by an act or omission expressly or impliedly makes it evident that she does not repudiate the marriage contract. In the case before me the petitioner has consummated her marriage and has, therefore, lost her right of exercising option of puberty.

16. The petitioner alleges that her ornament viz. ear-ring of half a tola gold given by her father to her at the time of marriage wasi snatched away from her by the respondent husband. The disposal by a husband without the wife's consent, of her property, not for her benefit but for his own use and thereby depriving her of her property would attract the provisions of clause (viii) (d) of the Dissolution of Muslim Marriages Act, 1939.

Even if the wife's property is disposed of to meet some pressing need of the husband it does not legitimize the disposal and the provision of clause (viii)

17. It is also alleged by the petitioner that the respondent was sexually weak at the time of marriage but later on became impotent. Under Islamic law the woman, who has been married in accordance with the law of Sharia'h, may obtain a decree of dissolution of marriage through the Court on the ground that her husband at the time of marriage contract was impotent and he continues to be so. Admittedly the respondent No.1 was not impotent at the time of marriage. His subsequent impotency will not entitle the petitioner for the dissolution of her marriage on the ground of alleged impotency.

18. The petitioner, however, claims dissolution of her marriage on the ground of Khula'. This requires consideration. Khula' is derived from the word (Khalun) which literally means extracting out one thing from another. Technically, the word "Khula'a", on the line of Naza'a, means "taking out" or "taking off" for instance, "Khula'a il-Thawb (-means "he took off the clothes". The Khula' in Shariah, means that a husband after accepting a compensation from his wife renounces over her his rights under the marriage contract.

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19. It may be noticed that there is a difference between Khula' and Talaq. A divorce is pronounced by the husband at his own initiative. A Khula' is given at the instance of the wife when they cannot maintain the limits of Allah. In divorce the husband becomes liable for immediate payment of the wife's dower, if deferred, or still unpaid, but in Khula' it is the wife who makes a payment to the husband in order to induce him to release her from the marriage-tie and the consideration may consist of the dower itself.

20. The Privy Council in, probably, the first leading case, *Moonshee tulzoor Rehman v. Lateefunnissa* 8, M.I.A. 379 observed that "A divorce by Khula' is a divorce with the consent and at the instance of the wife and in which she gives or agrees to give a consideration to the husband for her release from the marriage-tie. In such a case the terms of the agreement are matters of arrangement between the husband and the wife, and the wife may, as consideration, give up her dower and other rights or make any other arrangement for the benefit of husband".

21. It is now well-settled that if the Court is satisfied that the husband and the wife on account of disagreement between them cannot live together in accordance with the limits prescribed by

Allah, it shall be competent for the Court to order the husband to pronounce hula'.

22. The basis and the origin of the validity of Khula' is the Qura'nic verse:

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"A divorce is only permissible twice; after that, the parties should either hold together on equitable terms or separate with kindness. It is not lawful for you (men) to take back any of your gifts (from your wives) except when both parties fear that they would be unable to keep the limits ordained by Allah. If ye (judges) do indeed fear that they would be unable to keep the limits ordained by Allah, there is no blame on either of them if she gives something for her freedom. These are the limits ordained by Allah, so do not transgress them." (II: 229). ' .

23. The limits prescribed by Allah in this verse mean the Injunctions of Islam regarding a married life. Same is the assertion' of Ta'us

. (orJit) as well:

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(See Al-Jassas; Ahkam al-Qur'an, Cairo 1335 A.H.) Vol. III, page 390.

24. The verse thus means, if there be such a dislike between the husband and the wife that it becomes difficult to lead their life in mutual love and happiness the wife may, on payment of compensation, obtain Khula' from the husband. That is, Khula' is permissible when there is no possibility for happy union between the couple and there is the apprehension that due to their extreme differences they shall not be able to live in accordance with the dictates of Shari'ah.

25. In connection with the validity of Khula' the incident of Khula' of the wife of Thabit b.Qays b.Shamas forms the basis, which has been referred to by most of the traditionalists (Imam Bukhari, thus, has reported through Ibn'Abbas that the wife of Thabit b.Qays came to the Holy Prophet and said "O' Prophet of God! I do not find fault with the good behaviour and beliefs of Thabit b.Qays but I do abhor ingratitude (for hating my husband) in the state of Islam". The Prophet said, "Would you give the garden back to him?" She said, "Yes". The Prophet said to Thabit b.Qays, "Take back the garden and pronounce one divorce to her" (Al-B'ukhari, Al-Sahih, Karachi, Kitab-al-Talaq Vol.II, pp.94- 95). Imam Bukhari, in another narration, has used the words (the Prophet ordered him, then, he separated her, instead of (aajuii) i.e. (the Prophet ordered) "pronounce her one divorce". Besides, the names of the wife of Thabit b.Qays (one Habibah and the other

Jamilah) have been mentioned in different versions of the tradition. Ikramah has stated that her name was Jamilah. In the report by A'ishah, the lady is named as Habibah bt. Sahl which has been recorded by Abu Da'ud (See Abu Da'ud' Al-Sunnah, Karachi, Kitab al-Talaq). In some of the versions instead of one garden, two gardens are mentioned. In the version reported by Abu al-Zubayr it is also said that when the wife of Thabit b.Qays offered to give more besides giving back the garden, the Prophet by saying () asked her to give back only the garden and forbade her to give anything more (ibid).

26. Abu Da'ud in his Sunan has reported the version of A'ishah in the following manner: That Habibah bint Sahl was in the marriage of Thabit b.Qays b.Shamas. Thabit gave beatings to her and she received a bone fracture. She came to the presence of the Prophet and lodged complaint against Thabit. The Prophet called Thabit in his presence and said "Take some of Habiba's property and give her up". Thabit b.Qays inquired, "O' Prophet of God: will that be correct?" The Prophet replied, "Yes. Thabit said, "O' Prophet of God! I have given her two gardens and they are in her possession". The Prophet said, "Take those gardens back and give up Habibah". Thabit did the same. The text in Arabic reads as under:- Abu Daud: Al-Sunan, Karkhana Tijarat Kutab, Karachi, Kitab al-Talaq, p.303.

The same incident is reported by Nasa'i in his Sunan from the narrative of Rabi bt. Mu'awwadh b.Afra who related "that the name of the wife of Thabit b.Qays was Jamilah bt.Abdullah. Her hand had got fractured. Her brother had gone to the Prophet to lodge a complaint". The fact of the garden being returned, however, is not mentioned in this narrative. The Arabic text reads as under:- (Al-Nasa'i: Al-Sunan, Kitab ul-Talaq, p.93).

27. In a version given by another traditionist, Ibn Majah, in his Sunan, the name of the wife is given as Jamilah °Bint Salul Qa In yet another version Habibah bt.Sahl is also mentioned. It is written in this tradition that Habibah bt. Sahl, the wife of Thabit b. Qays expressed her abhorrence in these words, "By God, had I not been afraid of God, I might have spit upon his face when he intended to have intercourse with me. ,

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28. Concerning this incident, some other narratives are also found in the books of traditions and the traditionists have expressed their views about them. A study of these traditions makes it clear that the wife of Thabit b.Qays had really no complaint of cruelty or maltreatment by her husband, neither was she afraid of some harm to herself nor she entertained any grievance against his morality; rather the wife (who was said to be most beautiful) instantly started hating him in her heart because of his ugliness and short stature. In the night when Thabit came to her, it is possible, the wife might have refused to yield to him and resisted him. Thabit, on this, might have thrashed her and her hand or any limb might have got fractured. From "lodging the complaint in the morning", as a report has it, it appears that the incident took place during the night. In narrating the incident of spitting on Thabit's face, Ibn Majah has used the word () i.e. "when he intended to have intercourse with me." In another narrative, it is stated that when the Prophet came out of his house early in the morning, he found Habibah standing outside.

29. However, the fact remains that the wife of Thabit b.Qays whether her name is Jamilah or Habibah was not prepared to stay in his wedlock and the Prophet was convinced of the fact that the wife felt such repulsion for and was so sick of her husband that if Khula' was not got effected between them, they would be unable to maintain the limits prescribed by Allah. This is the situation that is described in the Qur'an.

Some of the commentators have said that the Qur'anic verse, "Then if ye (the judges) -fear that they both shall not maintain the limits set by God" (II: 229), referred to above, had been revealed in this context and that was the first Khula' in Islam.

30. Learned counsel for the petitioner cited the well-known two cases viz.; PLD 1959 Lah. 566 and PLD 1967 S C 97. In the first case Bilqees Fatima v. Najmul Ekram PLD 1959 Lah. 566 a Full Bench held that if the Court arrived at the conclusion that the couple would not be able to maintain the limits set by God, it would then get Khula' effected without the consent of the husband by ordering the wife to pay a reasonable compensation to the husband. In the second

case *Khurshid Bibi v. Muhammad Amin* PLD 1967 SC 97, the Hon'ble Supreme Court adopted the same view and held that the wife is entitled to *Khula'* as of right, if she satisfied the conscience of the Court that it will otherwise mean forcing her into a hateful union. Where the husband disputes the right of the wife to obtain separation by *Khula'*, it is obvious that some third party has to decide the matter and, consequently, the dispute will have to be adjudicated upon by the Qadi, with or without assistance of the Hakams.

31. The petitioner might have been entitled to dissolution of her marriage on the ground of non-maintenance, unauthorizedly disposing of her property and maltreatment at the hands of respondent, as alleged by the petitioner, for want of any evidence in rebuttal. Asking for *Khula'* by the petitioner, suggests, as she herself stated in para. 8 of the plaint, that if the Court is not prepared to dissolve the marriage on the grounds aforementioned as stated in paras. 3 to

7 of the plaint, the Court may consider the dissolution of marriage by *Khula'* for which she was willing and prepared to return what she had received from the respondent.

32. In so far as *Khula'* is concerned, the Courts in Pakistan are competent to pass decree for dissolution of marriage by *Khula'* if they are satisfied, on evidence, that the parties, if the marriage is not dissolved, will not be able to live within the limits prescribed by Allah. I am conscious of the fact that a question of fact will not be gone into by the High Court in exercise of its Constitutional jurisdiction. The Family Courts have not believed the factual allegations relating to the merits of the case, as made by the petitioner and the High Court in exercise of its Constitutional jurisdiction will not ordinarily disturb or set aside the said finding of fact but all cases cannot be measured by one and the same yard-stick. If in some case it is shown that the findings of the Family Courts, on facts, are perverse, or based on no evidence, the High Court, even in its Constitutional jurisdiction, may take a different view. In the instant case, there is no denial on record by the respondent as to the allegations levelled against him by the petitioner either in the Family Courts or this Court. He remained absent from the trial Court and did not file any written statement. He, however, did appear in the appellate Court and contested, through his counsel the appeal filed by the petitioner but did not file any counter-affidavit in reply to the appeal and affidavit filed by the petitioner. In the above Constitutional petition, he was again represented by a counsel who filed his *Vakalatnama* as long back as 7-4-1987, but he failed to file any counter-affidavit to the petition so as to contradict the several allegations made by the petitioner against him. In these circumstances, both the Courts acted illegally in dismissing the suit and appeal of the petitioner, in the absence of any evidence in rebuttal. The judgments passed by the two Courts below cannot at all be said to be creditable in law.

33. The fact which has weighed very much with me is the vast difference of ages of the petitioner and the respondent. The petitioner has stated her age as 17 years and the respondent's age as 85 years in the cause-title of the plaint. Generally speaking, the difference in ages of the couple is not to be regarded as ground for dissolution of marriage; the reason being that the marriage is contracted-by their mutual consent, but in the present case the petitioner has been] given in marriage by her father during her minority, her consent is absent and if the respondent who is stated to be 85 years of age and a very old man has rendered, impotent, the petitioner is deprived of the possibility of begetting children from him which is one of the purposes of marriage. (See Hamilton's Translation of *Hidaya*; *Kitab al-Nikah*, definition of marriage). Furthermore, the Courts cannot close their eyes from the social conditions of the present day society.

If the petitioner who is an illiterate young woman of about 22 years of age is forced to live with an old man of about 85 years, (now,

approximately of 90 years), under the circumstances of the case, when the petitioner's hand was given in marriage to the respondent by her father during her minority, there may be a possibility of the petitioner going astray and involve herself into sin and thus transgressing the limits prescribed by Allah. The marriage is for mutual solace and consolation, love and amity, and for purpose of procreation of children (If the said purpose get lost, for whose benefit, would it be to let the marriage continue? Perhaps, for none.

34. For the reasons mentioned above, I accept this petition. The impugned orders are declared to have been passed without lawful authority and are set aside. In the result, the marriage of the petitioner is dissolved by Khula' on remission of dower of Rs. 1,000. As the counsel for the respondent stated no instructions on 22-8-1988 at the time of final argument, there will be no order as to costs.

A . A . /A-391/K Petition accepted.

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